# VOLUME 6 SURVEILLANCE

## CHAPTER 9 PART 145 INSPECTIONS

### Section 26 Evaluate an EASA Supplement to a Repair Station Manual/Quality Control Manual

**6-9-26-1 REPORTING SYSTEM(S).** Use Safety Assurance System (SAS) automation and the associated Data Collection Tools (DCT).

**6-9-26-3 OBJECTIVE.** This section provides guidance for aviation safety inspectors (ASI) on how to evaluate the European Union Aviation Safety Agency (EASA) supplement to a Repair Station Manual (RSM)/Quality Control Manual (QCM). ASIs accomplish this evaluation process per the U.S./European Union (EU) aviation safety agreement (the Agreement).

**6-9-26-5 BACKGROUND.**

**A. U.S./EU Aviation Safety Agreement.**

**1)** The Agreement, which was signed on June 30, 2008, is between the United States and the EU to cooperate in the regulation of civil aviation safety. The Agreement's official title is "Agreement Between the United States of America and the European Community on Cooperation in the Regulation of Civil Aviation Safety." The Agreement contains two annexes. Annex 1 addresses airworthiness and environmental certification, and Annex 2 pertains to maintenance. This section focuses on the Federal Aviation Administration's (FAA) responsibilities with respect to Annex 2.

**2)** The Agreement enables the FAA and EASA to use their surveillance systems interchangeably, minimize duplication of efforts, increase efficiency, and conserve resources as much as possible. The Agreement calls for the successful completion of regularly scheduled FAA inspections. The FAA and EASA must be satisfied that repair stations located in the United States and EU-based Approved Maintenance Organizations (AMO) meet the conditions of Annex 2.

**3)** Annex 2 enables EASA and the FAA to accept each other's standards, systems, and approvals relating to repair stations located in the United States and EU-based AMOs that maintain civil aviation products. Annex 2 also explains how to establish points of communication and cooperation when urgent or unusual situations develop.

**B. Maintenance Annex Guidance (MAG).** The MAG is the general term for the document's official title, which is "Maintenance Annex Guidance Between the Federal Aviation Administration of the United States of America and the European Union Aviation Safety Agency of the European Union." The MAG, a separate document from the Agreement, explains how to implement the Agreement and its Annex 2.

NOTE: Both the MAG and the Agreement are available on the Repair Stations web page at https://www.faa.gov/aircraft/repair.

## 6-9-26-7 GENERAL.

**A. Role of the FAA Regarding EASA Supplements.** Before EASA approves a repair station under EASA Part-145, the repair station must prepare an EASA supplement to its RSM/QCM. The FAA will review and accept the initial supplement on behalf of EASA. If the repair station revises the supplement, it should submit the revision to the FAA. The FAA considers revisions to the supplement acceptable unless the FAA notifies the repair station otherwise.

**B. Submitting an EASA Supplement.** If this task is part of processing an initial application for EASA Part-145 approval, the repair station will submit the entire EASA supplement. If this task is part of processing a renewal approval or conducting a review of a revision to the EASA supplement, the repair station will submit only the revised portion to the FAA.

**C. MAG Requirements.** The Special Conditions contained in the MAG, Section A, Paragraph 5, Special Conditions, are required in the EASA supplement. These Special Conditions state that the repair station must provide a supplement to the RSM/QCM, which includes policies, procedures, and Special Conditions. The FAA accepts the supplement on behalf of EASA.

**D. MAG Guidance for ASIs.** Specific EASA guidance for preparing an EASA supplement to an RSM/QCM is contained in the MAG, Section B, Appendix 1, Guidance for the EASA Supplement. This document is provided to a repair station in response to a preliminary inquiry regarding initial EASA Part-145 approval. The ASI should review the MAG and use it in conjunction with this chapter when reviewing a repair station's EASA supplement. However, the MAG supersedes this section if conflicts exist between the two documents.

## 6-9-26-9 PREREQUISITES AND COORDINATION REQUIREMENTS.

**A. Prerequisites:**

- Completion of the Airworthiness Inspector Indoctrination course(s) or equivalent.
- Completion of FAA Course 21058, Certification and Surveillance of Part 145 Repair Stations.
- Completion of FAA electronic Learning Management System (eLMS) Course 27100345, Fundamentals of Bilateral Aviation Safety Agreements for SAS Peer Group 145F and H.
- Completion of FAA eLMS Course 27100346, EASA Maintenance Annex Guidance (MAG) Recurrent Training (required upon initial assignment and every 2 years or when the MAG is revised).
- Completion of FAA eLMS Course 27100354, US-EASA MAG for SAS Peer Groups 145F and 145H.
- Experience with certification or surveillance of Title 14 of the Code of Federal Regulations (14 CFR) part 145 repair stations.

**B. Coordination.** This task requires coordination with:

- The applicant/certificate holder (CH) repair station.
- The applicant/CH repair station's Principal Maintenance Inspector (PMI) and/or Principal Avionics Inspector (PAI).
- FAA Flight Standards (FS) offices, as appropriate.

## 6-9-26-11 REFERENCES, FORMS, AND JOB AIDS.

**A. References (current editions):**

- Title 14 CFR Parts 43 and 145.
- FAA Order 8130.21, Procedures for Completion and Use of the Authorized Release Certificate, FAA Form 8130-3, Airworthiness Approval Tag.
- Volume 1, Chapter 3, Section 1, Responsibilities of Aviation Safety Inspectors.
- Volume 2, Chapter 11, Certification of a Part 145 Repair Station, Sections 1–5.
- Volume 2, Chapter 11, Section 8, Initial, Renewal, Amendment, and Approval of a Part 145 Repair Station Located in the United States Applying for an EASA Part-145.
- Volume 6, Chapter 9, Section 25, FAA Participation in an EASA Sampling Inspection System Team Visit in the United States.
- Volume 10, Safety Assurance System Policy and Procedures.
- Agreement Between the United States of America and the European Community on Cooperation in the Regulation of Civil Aviation Safety (the Agreement).
- Maintenance Annex Guidance Between the Federal Aviation Administration of the United States of America and the European Union Aviation Safety Agency of the European Union (the MAG).

**B. Forms:**

- FAA Form 8000-4, Air Agency Certificate.
- FAA Form 8000, Repair Station Operations Specifications.
- FAA Form 8010-4, Malfunction or Defect Report.
- FAA Form 8120-11, Suspected Unapproved Parts Report.
- FAA Form 8130-3, Authorized Release Certificate, Airworthiness Approval Tag.
- EASA Form 9, FAA Recommendation.
- EASA Form 16, U.S. Repair Station Application for Initial/Renewal/Amendment of EASA Part-145 Approval in Accordance With the U.S./EU Bilateral Aviation Safety Agreement.

**C. Job Aids.** Job aids are included in the MAG as appendices.

## 6-9-26-13 PROCEDURES.

**A. Receive the Repair Station's EASA Part-145 Supplement/Supplement Revision.** The ASI will receive the repair station's initial, renewal, or amendment application. If the

renewal or amendment requires a supplement revision, ensure that the application includes the EASA supplement signed by the accountable manager for the repair station.

**B. Review the Repair Station's EASA Supplement/Supplement Revision.** Review the EASA supplement to determine whether it includes the sections and appropriate information as referenced in the sample EASA supplement contained in the MAG, Section B, Appendix 1.

NOTE: The ASI will review the supplement/supplement revision to determine that it does not contradict nor have an adverse effect on the EASA supplement.

**C. Changes to Facilities or Equipment.** If an amendment to an EASA supplement includes a change to the facilities or equipment, the ASI must inspect those facilities (see Volume 2, Chapter 11, Section 8).

**6-9-26-15 TASK OUTCOMES.**

**A. Complete the Task.** Completion of this task will result in either acceptance or rejection actions as follows:

**1)** Accept the EASA supplement/supplement revision by:

a) Continuing to process the repair station's application for EASA Part-145 approval in accordance with Volume 2, Chapter 11, Section 8, if applicable.

b) Preparing and transmitting a cover letter or transmittal document to the repair station that indicates FAA acceptance of the supplement/supplement revision.

c) Returning one copy of the EASA supplement/supplement revision to the repair station after receipt of its EASA Part-145 approval certificate.

d) Filing a copy of the EASA supplement/supplement revision as follows:

*1.* For an initial EASA supplement, file a copy of the EASA supplement (including a copy of the acceptance letter/transmittal document) in the repair station's office file.

*2.* For a revised EASA supplement, remove the affected pages, insert the revised pages into the current EASA supplement, and update the supplement control system. The FAA considers revisions to the EASA supplement acceptable unless the FAA notifies the repair station otherwise.

**2)** Reject the EASA supplement/supplement revision by:

a) Returning all copies of the EASA supplement/supplement revision to the repair station with a letter explaining the deficiencies.

b) Explaining to the repair station that it must correct and resubmit the EASA supplement/supplement revision to proceed with the process of seeking EASA Part-145 approval.

**B. Follow SAS Guidance for Modules 4 and 5.** Follow Volume 10 SAS guidance for Module 4, Data Collection and Data Reporting. Principal inspectors (PI) follow procedures for Module 5, Analysis, Assessment, and Action.

**C. Document the Task.** File all supporting paperwork in the repair station's office file and update the Vitals Information tab in the SAS Configuration Module.

**6-9-26-17 FUTURE ACTIVITIES.** Follow Volume 10 to plan future risk-based surveillance in SAS.

**6-9-26-19 through 6-9-26-33 RESERVED.**